

BY-LAW NO. 3519.

A By-law to authorize the impounding
of vehicles unlawfully occupying
City Streets.

THE COUNCIL OF THE CITY OF VANCOUVER in open meeting assembled, enacts as follows:

1. This By-law may be cited as the "Impounding By-law".

INTERPRETATION

2. Whenever the words following occur in this by-law they shall be construed in the manner hereinafter mentioned unless a contrary intention appears, or the interpretation which this provision would give to any word, expression or clause is inconsistent with the context, as the same appears in this by-law:

- (a) "Chief Constable" includes his deputies and agents.
 - (b) "Constable" means any member of the police force of the City of Vancouver.
 - (c) "Impound" includes the seizure, removal and detention of any vehicle, whether being driven or not, which is unlawfully placed, left, kept, or driven upon a street.
 - (d) "Impounding charges" include all expenses of removal and detention or impounding and also all towing, storage and other charges, all as provided by Schedule "A" to this By-law.
3. (a) Any constable may impound any vehicle, whether being driven or not, which is unlawfully placed, left, kept or driven upon a street.
- (b) Every vehicle which has been impounded shall be kept at such premises as may be designated by the Chief Constable and shall there be kept at the Owner's risk.

4. (a) The owner of any vehicle may recover possession of such vehicle prior to its sale as hereinafter provided, upon proof of his ownership thereof and upon payment of the impounding charges, provided however that the Chief Constable may give possession of such vehicle to any person who adduces, to the satisfaction of the said Chief Constable, evidence of entitlement to such possession further provided upon payment of the said impounding charges aforesaid.

(b) In every case where a vehicle has been impounded, and does not meet the requirements of the Motor Vehicle Inspection By-law, the Chief Constable shall immediately give notice thereof to the Superintendent of the Motor Vehicle Inspection Station in Vancouver, and thereupon such vehicle shall only be released upon the authorization of the said Superintendent.

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5. (a) Upon any vehicle being impounded, the Chief Constable shall cause enquiry to be made as to who is the owner of such vehicle, or is entitled to claim possession thereof.

(b) In respect of vehicles registered in British Columbia, the Chief Constable shall within seven days of the impounding of such vehicle forward a notice in writing to the registered owner as shown by the records maintained by the Superintendent of Motor Vehicles.

(c) In respect of vehicles registered outside British Columbia, the Chief Constable shall forward such notice aforesaid within twenty-one days of the impounding of such vehicle to such person as the Chief Constable shall, after enquiry, deem to be the owner of the said vehicle or entitled to claim possession of the same.

(d) The said notices shall contain a description of the said vehicle, a statement of the scale of impounding charges and the address where the said vehicle is held, and shall also state a date after which the said vehicle will be sold.

6. (a) Unless possession of the said vehicle has been claimed, and any impounding charges applicable thereto have been paid within forty-five days from the date of impoundment, then the Chief Constable may dispose of such vehicle as hereinafter provided.

(b) The Chief Constable shall, after thirty days from the time that such vehicle comes into the hands of the police, publish a notice in three consecutive daily issues of a newspaper having a general circulation in the City of Vancouver. Such notice shall contain a description of the said vehicle, the name and address of the last known registered owner, a statement of the scale of impounding charges and the place where the said vehicle is being held, and shall also state the date after which the said vehicle will be sold.

(c) The Chief Constable shall, in the first instance, offer such vehicle for sale at public auction and may put a reserve price on such vehicle. Such public auction shall not be held until at least fourteen days following the publication of the notice referred to in clause (b).

(d) Any vehicle, which has been put up for sale at public auction but not sold may subsequently be sold by the Chief Constable by private sale for such price as he may deem adequate.

(e) The Purchasing Agent of the City of Vancouver shall be in charge of all sales.

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7. Upon the sale of any vehicle pursuant to the provisions hereof, the City Purchasing Agent shall pay the net proceeds of sale to the City Treasurer who shall, after deducting impounding and other charges, hold any balance for any lawful claimant thereto.

8. The Chief Constable shall cause to be kept a record of every vehicle impounded pursuant to the provisions of this by-law. Such record shall be adequate and sufficient to identify the vehicle in question, and shall also give details of the time when and the place where the said vehicle was impounded, and of the full amount of the impounding charges up to the date of sale or restoration thereof.

9. Every person who attempts to prevent the impounding of any vehicle or who in any manner interferes with the impounding of any such vehicle shall be deemed to be guilty of an infraction of this by-law and shall be liable to the penalties provided herein.

10. Every vehicle which comes into the hands of the Police for any reason other than as a result of impounding shall be held and dealt with in accordance with the provisions of this By-law but no impounding charges shall be imposed in respect thereof until seven days after a date to be fixed by the Chief Constable, after which date all the provisions of this by-law shall apply thereto.

11. Every person who offends against any of the provisions of this by-law, or who suffers or permits any act or thing to be done in contravention or in violation of any of the provisions of this by-law, or who neglects to do or refrains from doing anything required to be done by any of the provisions of this by-law, or who does any act or thing which violates any of the provisions of this by-law, shall be deemed to be guilty of an infraction of this by-law, and shall be liable to the penalties hereby imposed.

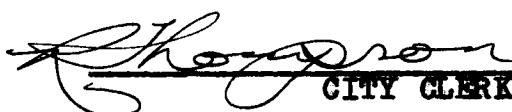
12. Every person who commits an offence against this by-law is liable, to a fine and penalty not exceeding One Hundred (\$100.00) Dollars and costs, or in default of payment thereof, or in the alternative, to imprisonment with or without hard labour for any period not exceeding two months.

13. By-law No. 2676, as amended by By-law No. 3374, is hereby repealed.

14. This By-law shall come into force and take effect on and after the date of the final passing hereof.

DONE AND PASSED in open Council this 18th day of April, 1955.


MAYOR


CITY CLERK

This By-law received:
1st reading - April 18, 1955.
2nd " - April 18, 1955.
3rd " - April 18, 1955.


City Clerk.

SCHEDULE "A"SCHEDULE OF IMPOUNDING AND OTHER CHARGES

Removal or towing charge \$ 3.00

Storage charges:

for the first three days after
the vehicle comes into the
hands of the police

.50 per day or
part of a day

for the fourth and every
subsequent day

\$ 2.00 per day or
part of a day

Charge for any necessary sale

\$ 5.00 per sale.

Extra service or additional facilities deemed by the Chief
Constable to be necessary will be charged at actual cost.